



THE SACRED LAWS OF THE CASTES

THE *ARTHASHASTRA* AND THE *MANUSMRITI*
(2ND CENTURY BCE)

IN CONTEXT

FOCUS

The caste system and Hindu law

BEFORE

1500–1200 BCE The *Rig Veda*, the earliest Sanskrit text, is composed in India's tribal society, where *rajas* (rulers) are chosen by chieftains.

1100–500 BCE Hereditary kingdoms appear in northern India, and a fourfold caste system emerges.

AFTER

1794 The *Manusmriti* is translated into English and used by British colonial rulers as a law code for Hindus.

1905 A manuscript of the *Arthashastra*, lost since the 12th century, is rediscovered.

1949 Newly independent India's constitution bans discrimination on the basis of caste, but the issue persists into the 21st century.

The *Arthashastra* and the *Manusmriti* are two ancient Hindu texts written in Sanskrit and thought to date from as early as 200 BCE. The *Arthashastra* (*Science of Prosperity*) is a practical guide for kings, offering advice on how to maintain power and create a strong state. The *Manusmriti* (*Recollections of Manu*) is a set of rules or codes supposedly derived from Manu, mythical founder of the human race. It is more concerned with moral and social behavior and duties than the *Arthashastra*.

The books portray Indian society divided into four *varnas* (castes), a hierarchy based on ritual purity. The purest were the *brahmins* (priests), followed by *kshatriyas* (rulers and warriors), *vaishyas* (merchants and farmers), and *shudras* (laborers). It was believed that to be born into a particular caste was a reward or punishment for actions performed

in a previous life. Both books forbid mixing between castes. Although neither text functioned as a law code, each describes strict rules and punishments for every part of life.

The *Manusmriti* took on a new significance in the late 18th century, when the British rulers of India interpreted it as a definitive legal code for Hindus, equivalent to Sharia law for Muslims. It was translated into English under the title *Institutes of Hindu Law* and used to formulate laws for Britain's Hindu subjects. ■



Dr. Bhimrao Ambedkar, seen here on a 1960 postage stamp, was India's first law minister and a prominent campaigner against the caste system.

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